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WEST VIRGINIA ET AL. *v.* B. P. J., BY HER NEXT FRIEND AND MOTHER, HEATHER JACKSON

CERTIORARI TO THE UNITED STATES COURT OF APPEALS FOR THE FOURTH CIRCUIT

No. 24–43. Argued January 13, 2026—Decided June 30, 2026*

The question before the Court in these cases is whether, under Title IX and the Equal Protection Clause of the Fourteenth Amendment, schools may maintain women's and girls' sports teams for biological females, *i.e.*, may schools determine eligibility for female sports based on biological sex? In the past six years, 27 States have enacted laws that maintain female sports for biological females.

In 2021, West Virginia enacted the Save Women's Sports Act, which prohibits male students from playing on female teams. W. Va. Code Ann. §§18–2–25d(c)(2)–(3). The law specifies that sex is determined by biology. §§18–2–25d(a)(4), (b)(1). The legislature expressly found that prohibiting biological male participation in female sports is necessary to promote equal athletic opportunities for women and girls. See §§18–2–25d(a)(1), (3), (5). Respondent B. P. J., who identifies as female, is a biological male as defined by §§18–2–25d(a)(4), (b)(1). B. P. J. has sought to participate on the girls' cross-country and track-and-field teams at school. B. P. J. sued West Virginia and relevant officials for alleged violations of Title IX and the Equal Protection Clause of the Fourteenth Amendment. The U. S. District Court for the Southern District of West Virginia granted summary judgment for the State on both claims. On appeal, the Fourth Circuit reversed on the Title IX issue and remanded for further fact-finding on the Equal Protection Clause claim. 98 F. 4th 542.

In 2020, Idaho enacted the Fairness in Women's Sports Act, which prohibits male students from participating on female teams. Idaho Code Ann. §33–6203. The Idaho law states that sex is determined by biology. *Ibid.* And the law declares that "separate sex-specific teams furthers efforts to promote sex equality . . . by providing opportunities for female athletes." §33–6202(12). It also recognizes the physical differences between biological males and biological females. §§33–6202(1)–(5), (7), (8), (10)–(12). The law further found that the benefit

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*Together with No. 24–38, *Little, Governor of Idaho, et al.* v. *Hecox et al.*, on certiorari to the United States Court of Appeals for the Ninth Circuit.

"that natural testosterone provides to male athletes is not diminished through the use of puberty blockers and cross-sex hormones." §33–6202(11). Respondent Hecox, who identifies as female, is a biological male as defined by §33–6203. Hecox competed for the women's club soccer team, and tried out for the women's Division I track and cross-country teams. Shortly after Idaho enacted the Fairness in Women's Sports Act, Hecox sued Idaho and relevant officials, alleging a violation of the Equal Protection Clause. The U. S. District Court for the District of Idaho granted a preliminary injunction barring enforcement of the Fairness in Women's Sports Act, and the Ninth Circuit affirmed. 104 F. 4th 1061.

Held:

1. Title IX allows schools to provide separate women's and men's sports teams defined by biological sex, and West Virginia has permissibly maintained female sports for biological females consistent with Title IX. Pp. 973–978.

(a) Title IX provides: "No person in the United States shall, on the basis of sex, be excluded from participation in, be denied the benefits of, or be subjected to discrimination under any education program or activity receiving Federal financial assistance." 20 U. S. C. §1681(a). Two years after Title IX became law in 1972, Congress passed the Javits Amendment, which directed the then-Department of Health, Education, and Welfare (HEW) to promptly issue "regulations implementing the provisions of" Title IX with respect to "the prohibition of sex discrimination." §844, 88 Stat. 612. The amendment further specified that the regulations "shall include with respect to" "athletic activities *reasonable provisions considering the nature of particular sports*." *Ibid.* (emphasis added). In 1975, HEW promulgated comprehensive regulations requiring that schools provide "equal athletic opportunity for members of both sexes" and authorizing "separate teams for members of each sex where selection for such teams is based upon competitive skill or the activity involved is a contact sport." 34 CFR §§106.41(b), (c). Pp. 973–974.

(b) The term "sex" in Title IX, the Javits Amendment, and the Title IX regulations cannot plausibly be interpreted to refer to anything other than biological sex. The ordinary meaning of the term "sex" at the time of enactment in the early 1970s was biological sex and not gender identity, particularly in the sports context. See, *e. g.*, *Frontiero* v. *Richardson*, 411 U. S. 677, 686 (plurality opinion) ("sex" is "an immutable characteristic"). In addition, the Title IX regulations allowed separate sports teams precisely because of the inherent physical differences between biological men and biological women.

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While B. P. J. agrees that Title IX permits schools to maintain separate female and male teams and to prohibit *most* biological males from playing on women's and girls' teams, B. P. J. argues that schools must make an exception to that general rule for biological males who identify as female and have taken puberty blockers or hormones. But the texts of Title IX, the Javits Amendment, and the Title IX regulations do not support that argument, and do not speak to that issue in a way that could properly be interpreted to require schools to allow biological males to participate in women's and girls' sports.

B. P. J. argues that if the regulations authorize a school to limit female sports teams to biological females without exception, then the regulations are not "reasonable" as required by the Javits Amendment, § 844, 88 Stat. 612. The Court concludes that separate sports teams for biological males and biological females are reasonable given the inherent physical differences between the sexes. In assessing the reasonableness of the regulations, the Court must recognize the distinctiveness of competitive sports—and the safety and competitive fairness issues that can arise when females are forced to compete against males. In recent years, 27 States and various sports-governing bodies have all drawn the same line. Pp. 974–977.

(c) The Court rejects B. P. J.'s two other Title IX-related arguments. B. P. J. contends that the school's policy violates Title IX because the policy effectively excludes B. P. J. from any competitive sports teams at the school. While it is an unhappy occasion whenever a student who wants to play school sports cannot do so, the Title IX regulations guarantee only "equal athletic opportunity."

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B. P. J. relies on Title VII of the Civil Rights Act of 1964, 42 U. S. C. § 2000e–2(a)(1), and *Bostock* v. *Clayton County*, 590 U. S. 644, as support for interpreting Title IX to require that schools allow biological males on female teams. Title VII and *Bostock* are not relevant in this very different statutory and factual context of sports. Pp. 977–978.

2. West Virginia and Idaho did not violate the Equal Protection Clause of the Fourteenth Amendment by maintaining female sports teams for biological females. Pp. 978–990, 991–993.

(a) The challenged West Virginia and Idaho laws make sex-based classifications in limiting female teams to biological females. Under this Court's equal protection precedents, sex-based classifications are permissible only when the classification is "substantially related" to achieving an "important" government objective. *United States* v. *Skrmetti*, 605 U. S. 495, 510 (quotation marks omitted). The States argue—and the Court agrees—that the interests of safety and competitive fairness are important interests for purposes of equal protection analysis. And the States' sex-based classification—limiting women's and girls' sports

to biological females—is substantially related to those interests. See *Ibid.* Schools may determine eligibility for women's and girls' sports based on biological sex. Pp. 978–982.

(b) Respondents acknowledge that States may exclude most biological males from women's and girls' sports, given the general physical differences between males and females. The Equal Protection Clause does not prohibit the States from applying that same principle to all biological males, including those who identify as female. States are not required to conduct an individual-by-individual comparison of the physical and athletic capabilities of all biological males in order to satisfy intermediate scrutiny. Under the intermediate scrutiny test the "validity of the regulation depends on the relation it bears to the overall problem the government seeks to correct, not on the extent to which it furthers the government's interests in an individual case." *Ward* v. *Rock Against Racism*, 491 U. S. 781, 801. Intermediate scrutiny permits a sex-based classification that, as here, is "not invidious, but rather realistically reflects the fact that the sexes are not similarly situated in certain circumstances." *Michael M.* v. *Superior Court, Sonoma Cty.*, 450 U. S. 464, 469 (plurality opinion).

The as-applied argument that the States' sex-based classification is generally permissible—but not as applied to those biological males such as B. P. J. and Hecox who identify as female and have taken puberty blockers or hormones—fails for the same reasons. Particularly in the sports context, determining the effects of the puberty blockers and hormones taken by transgender athletes—and then comparing each of those transgender athletes' abilities to those of other individual biological males and individual biological females in the relevant sport—would be an almost impossible task for a judge to perform on an equitable basis. The legislatures and the schools are better equipped—and under the Constitution, are the more appropriate entities—to assess the competing medical and scientific considerations and draw appropriate lines.

The argument that the challenged laws unconstitutionally discriminate against transgender individuals is unavailing. Under this Court's decision in *Skrmetti*, the challenged laws do not classify based on gender identity or transgender status, see 605 U. S., at 517, but instead on the basis of biological sex. The classification at issue readily satisfies rational basis review or intermediate scrutiny. Pp. 982–988.

(c) The underlying medical and scientific premise of the equal protection challenge here is that at least some biological males who identify as female and take puberty blockers or hormones do not retain physical advantages over biological females. That premise is the subject of ongoing medical and scientific debate. Even if true, that empirical claim

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would not alter the equal protection conclusion set forth above. Pp. 988–990.

No. 24–43, 98 F. 4th 542, and No. 24–38, 104 F. 4th 1061, reversed and remanded.

KAVANAUGH, J., delivered the opinion of the Court, in which ROBERTS, C. J., and THOMAS, ALITO, GORSUCH, and BARRETT, JJ., joined. THOMAS, J., *post*, p. 993, and GORSUCH, J., *post*, p. 994, filed concurring opinions. SOTOMAYOR, J., filed an opinion concurring in the judgment in part and dissenting in part, in which KAGAN and JACKSON, JJ., joined, *post*, p. 998. JACKSON, J., filed an opinion concurring in the judgment in part and dissenting in part, *post*, p. 1029.

Michael R. Williams, Solicitor General of West Virginia, argued the cause for petitioners in No. 24–43. With him on the briefs were *John B. McCuskey*, Attorney General of West Virginia, *Holly J. Wilson*, Principal Deputy Solicitor General, *Spencer J. Davenport*, Assistant Solicitor General, *John J. Bursch*, *Kristen K. Waggoner*, *James A. Campbell*, *Jonathan A. Scruggs*, *Jacob P. Warner*, *Kelly C. Morgan*, *Susan L. Deniker*, and *Amy M. Smith*.

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Alan M. Hurst, Solicitor General of Idaho, argued the cause for petitioners in No. 24–38. With him on the briefs were *Raúl R. Labrador*, Attorney General of Idaho, *James E. M. Craig*, *Michael A. Zarian*, *Sean M. Corkery*, *Gader Wren*, *Kristen K. Waggoner*, *James A. Campbell*, *John J. Bursch*, *Lincoln Davis Wilson*, *Christopher P. Schandevel*, and *Caroline C. Lindsay*.

Principal Deputy Solicitor General Mooppan argued the cause for the United States as *amicus curiae* urging reversal in both cases. With him on the brief were *Solicitor General Sauer*, *Assistant Attorney General Dhillon*, *Principal Deputy Assistant Attorney General Osete*, *Max E. Schulman*, *Andrew G. Braniff*, and *Christopher C. Wang*.

Joshua A. Block argued the cause for respondent in No. 24–43. With him on the brief were *Chase B. Strangio*, *Sruti J. Swaminathan*, *James D. Esseks*, *Ria Tabacco Mar*, *Louise Melling*, *Kathleen R. Hartnett*, *Zoë Helstrom*, *Patrick J.*

Hayden, *Katelyn Kang*, *Ephraim A. McDowell*, *Joshua Revesz*, *Elias S. Kim*, *Elizabeth F. Reinhardt*, *Cecillia D. Wang*, *Sasha Buchert*, *Carl S. Charles*, *Camilla B. Taylor*, *Karen L. Loewy*, and *Tara L. Borelli*.

Kathleen R. Hartnett argued the cause for respondents in No. 24–38. With her on the briefs were *Zoë Helstrom*, *Patrick J. Hayden*, *Katelyn Kang*, *Joshua A. Block*, *Chase B. Strangio*, *Sruti J. Swaminathan*, *James D. Esseks*, *Ria Tabacco Mar*, *Louise Melling*, *Cecillia D. Wang*, *Ephraim A. McDowell*, *Joshua Revesz*, *Elias S. Kim*, and *Elizabeth F. Reinhardt*.†

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†Briefs of *amici curiae* urging reversal in both cases were filed for the American Association of Christian Schools et al. by *Timothy J. Newton*; for America's Future et al. by *William J. Olson*, *Jeremiah L. Morgan*, *J. Mark Brewer*, and *Joseph W. Miller*; for the Center for American Liberty by *Josh Dixon*; for the Church of the Latter-day Saints et al. by *R. Shawn Gunnarson*; for Concerned Women for America et al. by *Christopher E. Mills*; for Defending Education by *J. Michael Connolly*; for Defense of Freedom Institute for Policy Studies by *Donald A. Daugherty, Jr.*; for Do No Harm by *David H. Thompson* and *Brian W. Barnes*; for the Independent Council on Women's Sports by *William Bock III*; for Interested Sports Physiologists by *Kyle D. Hawkins* and *Shannon G. Denmark*; for Liberty Counsel by *Horatio G. Mihet*, *Mathew D. Staver*, and *Anita L. Staver*; for NC Values Institute by *Deborah J. Dewart* and *Tami Fitzgerald*; for Sex Matters by *John C. Sullivan*; for Sport Scientists by *Michelle Stratton*; for True Blue Sapphires, Inc., by *Jay R. Carson* and *Angela M. Lavin*; for the United States Conference of Catholic Bishops by *Benjamin M. Flowers*; for Women's Declaration International USA by *Kara Dansky*; for Women's Liberation Front by *Nancy K. Stade* and *Elspeth B. Cypher*; for the President *Pro tempore* of the Idaho Senate Kelly Anthon et al. by *Judd E. Stone* and *Ari Cuenin*; and for Riley Gaines et al. by *William Bock III*.

Briefs of *amici curiae* urging reversal in No. 24–43 were filed for the U. S. House of Representatives by *Matthew B. Berry* and *Brooks M. Hanner*; for the State of Arkansas et al. by *Tim Griffin*, Attorney General of Arkansas, and *Autumn Hamit Patterson*, Solicitor General, by *Steve Marshall*, Attorney General of Alabama, *Edmund G. LaCour, Jr.*, Solicitor General, and *A. Barrett Bowdre*, Principal Deputy Solicitor General, and by the Attorneys General for their respective jurisdictions as follows: *Stephen J. Cox* of Alaska, *James Uthmeier* of Florida, *Chris Carr* of Georgia,

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JUSTICE KAVANAUGH delivered the opinion of the Court.

Title IX transformed American sports and American life. Enacted in 1972, that landmark law promoted equal opportu-

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Douglas B. Moylan of Guam, *Theodore E. Rokita* of Indiana, *Brenna Bird* of Iowa, *Kris W. Kobach* of Kansas, *Russell Coleman* of Kentucky, *Liz Murrill* of Louisiana, *Lynn Fitch* of Mississippi, *Catherine L. Hanaway* of Missouri, *Austin Knudsen* of Montana, *Michael T. Hilgers* of Nebraska, *John M. Formella* of New Hampshire, *Drew H. Wrigley* of North Dakota, *Dave Yost* of Ohio, *Gentner Drummond* of Oklahoma, *Dave Sunday* of Pennsylvania, *Alan Wilson* of South Carolina, *Marty Jackley* of South Dakota, *Jonathan Skrmetti* of Tennessee, *Ken Paxton* of Texas, *Derek Brown* of Utah, *Jason Miyares* of Virginia, *John B. McCuskey* of West Virginia, and *Keith G. Kautz* of Wyoming; for the America First Legal Foundation by *Christopher E. Mills* and *Gene P. Hamilton*; for the American College of Pediatricians by *Edward H. Trent*, *Gene C. Schaerr*, and *John Greil*; for the Becket Fund for Religious Liberty by *Laura Wolk Slavis*, *Eric Rassbach*, *Benjamin Fleshman*, and *Robert Ellis*; for the Equal Protection Project by *Timothy R. Snowball* and *William A. Jacobson*; for the Independent Women's Law Center by *Gene C. Schaerr* and *May Mailman*; for the John Adams Academies et al. by *Erin Elizabeth Mersino*, *Robert H. Tyler*, and *Julianne Fleischer*; for the Mountain States Legal Foundation by *William E. Trachman* and *James Kerwin*; for the New Civil Liberties Alliance by *Casey Norman* and *Mark Chenoweth*; for the President of the Arizona State Senate Warren Petersen et al. by *Justin D. Smith*, *Michael C. Martinich-Sauter*, and *Kenneth C. Capps*; for L. V. et al. by *Luke Berg* and *Richard M. Esenberg*; and for 96 West Virginia Legislators by *Joseph S. St. John*.

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Briefs of *amici curiae* urging reversal in No. 24–38 were filed for State of Alabama et al. by *Steve Marshall*, Attorney General of Alabama, *Edmund G. LaCour, Jr.*, Solicitor General, *A. Barrett Bowdre*, Principal Deputy Solicitor General, by *Tim Griffin*, Attorney General of Arkansas, and *Autumn Hamit Patterson*, Solicitor General, and by the Attorneys General for their respective jurisdictions as follows: *Stephen J. Cox* of Alaska, *James Uthmeier* of Florida, *Christopher M. Carr* of Georgia, *Douglas B. Moylan* of Guam, *Raúl R. Labrador* of Idaho, *Theodore E. Rokita* of Indiana, *Brenna Bird* of Iowa, *Kris Kobach* of Kansas, *Russell Coleman* of Kentucky, *Liz Murrill* of Louisiana, *Lynn Fitch* of Mississippi, *Catherine L. Hanaway* of Missouri, *Austin Knudsen* of Montana, *Michael T. Hilgers* of Nebraska, *John M. Formella* of New Hampshire, *Drew H. Wrigley* of North Dakota, *Dave Yost* of Ohio, *Gentner Drummond* of Oklahoma, *Dave Sunday* of Pennsylvania, *Alan Wilson* of South Carolina, *Marty J. Jackley*